

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: May 18, 2026 at 1:30 pm

Rulings Posted: 5/15/26 at 3 pm

#	Case Name	Tentative
301	<i>M. vs. Saddleback Valley Unified School District</i>	The motion for sanctions filed by defendants, Saddleback Valley Unified School District; John Stamos; Eric Salazar; Mike Hoffman; Justin Safford; and Stephen Chanda (collectively referred to as Defendants) is DENIED. Defendants move for an order imposing terminating and monetary sanctions under Code of Civil Procedure sections 128.5 and 128.7 against plaintiff I.M., a minor, by and through his guardian ad litem, Rebecca McKeown (Plaintiff). As an initial matter, the court will exercise its discretion and consider the untimely filed opposition.

		As to the merits, Defendants failed to show sanctions under section 128.5 or section 128.7 are warranted in this instance. The record before the court shows the October 20, 2022 letter was sent to Plaintiff's former counsel, Wilshire Law Firm, PLC. (See ROA 232, Ex. B.) Knowledge of the October 20, 2022 letter could reasonably be imputed to Plaintiff. (See Civ. Code § 2332.) Plaintiff raised this argument in the Opposition, but Defendants failed to address it in the Reply. Moreover, the court (Judge Hoffer) previously determined the October 20, 2022 letter could possibly support an equitable estoppel defense. (See ROA 179.) In addition, as Plaintiff contends, the third amended complaint (TAC) could reasonably be interpreted as describing what Plaintiff's legal team believed based on the documents the legal team received. Thus, it cannot be said the TAC's equitable estoppel allegations are entirely without merit or were made in bad faith. As to Defendants' argument that the allegations in the TAC regarding Ms. McKeown's conversation with Priscilla Ard are false, the cited deposition testimony does not establish the falsity of the allegations. Defendants also failed to show sanctions are warranted based on their argument that Plaintiff's lawsuit is barred under "multiple affirmative defenses." These arguments are more appropriately raised on summary judgment motion. Plaintiff shall give notice.
302	<i>Global Liquidity Services, LLC vs. Xport Forwarding LLC</i>	Before the court is a Motion for Leave to File a Second Amended Complaint by plaintiffs Global Liquidity Services, LLC d/b/a VendorPayment and Protective Supplies, LLC (collectively referred to as Plaintiffs). The motion is GRANTED.